

#	Case Name	Tentative
50	La Paz Village Investors, LLC vs. Orange County Realtors, Inc. 26-01538551	1. Demurrer to Amended Cross-Complaint 2. Motion to Strike Cross-Complaint No Tentative. Parties to Appear.
53	Gianulias vs. Gibson 23-01308044	1. Motion to Quash Service of Summons 2. Motion to Set Aside/Vacate Default No Tentative. Parties to Appear.
57	Diliberto vs. Surgical Care Affiliates, LLC 23-01358521	Motion for Terminating Sanctions The Motion for Terminating Sanctions brought by Defendants Surgical Care Affiliates, LLC and Surgicare of La Veta, Ltd. (dba Newport Coast Surgical Institute) is DENIED. Pursuant to Code of Civil Procedure section 2023.030, the Court may impose a terminating sanction against one “engaging in conduct that is a misuse of the discovery process,” via an order dismissing the action. (Code Civ. Proc., § 2023.030, subd. (d)(3).) Disobeying a court order to provide discovery is a misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (g).) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (<i>Rodriguez v. WNT, Inc.</i> (2025) 116 Cal.App.5th 791, 810.) “Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (<i>Ibid.</i> [internal quotations omitted].)

	“The statutory requirement that there must be a failure to obey an order compelling discovery before the court may impose a nonmonetary sanction for misuse of the discovery process provides some assurance that such a potentially severe sanction will be reserved for those circumstances where the party’s discovery obligation is clear and the failure to comply with that obligation is clearly apparent.” (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 11.) “In addition, terminating sanctions are appropriate only if a party’s failure to obey a court order actually prejudiced the opposing party.” (<i>Ibid.</i>) “Dismissal is a proper sanction to punish the failure to comply with a rule or an order only if the court’s authority cannot be vindicated through the imposition of a less severe alternative.” (<i>Electronic Funds Solutions v. Murphy</i> (2005) 134 Cal.App.4th 1161, 1183.) “[T]he court may <i>not</i> impose sanctions which are designed <i>not to accomplish the objects of the discovery but to impose punishment.</i>” (<i>Ibid.</i>) Applying the above authority herein, a terminating sanction is inappropriate, given it is undisputed that Plaintiff complied with the portion of the order dated July 11, 2025, which required discovery responses. (¶12-¶14 of Simone Declaration; See also ¶3 of Khouri Declaration.) The above referenced order required discovery responses “within 20 days-notice of this order.” (ROA No. 506.) A review of the Court record reveals that Plaintiff was provided notice the same day as the hearing, July 11, 2025, via email. (ROA No. 505.) Adding a two-court day extension for electronic service (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)), responses were due by August 4, 2025, the date that moving counsel concedes responses were received. (¶14 of Simone Declaration.) Based on the above, Defendants have not established a “failure to obey an order compelling discovery,” as required. (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 11.) At best, Defendants assert Plaintiff failed to comply with the order dated July 11, 2025, via his failure to pay the identified monetary sanctions. (See ¶15-¶17 of Simone Declaration.) However, “a terminating sanction issued solely because of a failure to pay a monetary discovery sanction is never justified.” (<i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, 615.) Such an order would be impermissibly “designed <i>not to accomplish the objects of the discovery but to impose punishment.</i>” (<i>Electronic Funds Solutions v. Murphy</i> (2005) 134 Cal.App.4th 1161, 1183.) Based on all the above, the instant Motion is DENIED, along with Defendants’ request for attorneys’ fees.
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		Given the above compliance, no basis for an additional monetary sanction has been shown. Additionally, Defendants cite no authority which permits a monetary sanction, solely for failure to pay an earlier monetary sanction. As explained by the Court in <i>Newland v. Superior Court</i> (1995) 40 Cal.App.4th 608, a further monetary sanction is unnecessary, as the initial monetary sanction has “the force and effect of a money judgment” and is “immediately enforceable through execution....” (<i>Id.</i> at p. 615.) Defendants’ Request for Judicial Notice is GRANTED, as to Exhibits A through E, as the identified documents are court records, subject to judicial notice pursuant to Evidence Code section 452, subdivision (d). The Request for Judicial Notice is DENIED, as to Exhibits F and G, as the attached correspondences are not appropriate for judicial notice, given they could reasonably be disputed.
59	Dascanio vs. Arsenian 22-01257590	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment or Summary Adjudication brought by Cross-Defendants Benjamin Arsenian and the Law Offices of Benjamin Arsenian to adjudicate the claims alleged by Cross-Complainant Dennis Dascanio and his law office (ROA 751) is DENIED. The moving Cross-Defendant Arsenian and his law firm will be jointly referred to as ARSENIAN. The opposing party, Cross-Complainant Dascanio and his law firm will be jointly referred to as DASCANIO. Initially, Arsenian Cross-Defendant requests adjudication in their favor, based on their assertion that Dascanio’s Cross-Complaint is attempting to relitigate the sufficiency of a fee-sharing agreement, which this Court has already found to be unenforceable. (See Motion: 8:6-11:6) However, Arsenian subsequently concedes that the issues raised within the Cross-Complaint differ from those previously determined: “The Court’s prior ruling did not find that Arsenian owed Santamaria a duty to deposit settlement funds into an account jointly controlled with Dascanio [and] did not find that Arsenian was liable to Santamaria for delayed settlement payment...” (Motion: 10:19-21.) As it is these later issues which are raised within the Cross-Complaint and <i>not</i> the sufficiency of the fee-sharing agreement between Arsenian and Dascanio, the issues are not identical, and collateral estoppel does not apply. (<i>Lucido v. Superior Court</i> (1990) 51 Cal.3d 335, 341.)